

A claim may be supported by showing “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) To establish conscious disregard, “the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 908, italics omitted.)

Accordingly, the motion to strike is granted, with leave to amend.

Tentative Ruling

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Tentative Ruling

Re: **Carrington Mortgage Services, LLC v. Martina Ruiz**
Superior Court Case No. 25CECG04885

Hearing Date: September 23, 2026 (Dept. 501)

Motion: By Plaintiff Carrington Mortgage Services, LLC for Motion for Stay

Tentative Ruling:

To grant. To set a Status Conference for Tuesday, January 19, 2027 at 3:30 p.m. in Department 501.

Explanation:

Trial courts have inherent authority to stay malpractice suits, holding them in abeyance pending resolution of underlying litigation. (*Adams v. Paul* (1995) 11 Cal.4th 583, 593.)

At issue in this matter is a claim for judicial foreclosure. Plaintiff Carrington Mortgage Services, LLC ("Plaintiff") reports that it has placed an internal hold on proceeding in this matter to explore alternative options to foreclosure. (Nguyen Decl., ¶ 5.) Plaintiff further reports that the parties are in active negotiations to resolve the matter without further court intervention. (*Id.*, ¶ 7.) Plaintiff submits that the stay is sought in good faith. (*Id.*, ¶ 9.)

No opposition was filed by defendants Martina V. Ruiz nor the Secretary of Housing and Urban Development, nor has defendant Ruiz appeared.³ The motion is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 09/22/26
(Judge's initials) (Date)

³ Defendant Secretary of Housing and Urban Development, by and through the Office of the United States Attorney, has appeared and stipulated to entry of a consent judgment.